

2. 9:00 AM CASE NUMBER: C25-01575
CASE NAME: DONNA PREVOST VS. CMG MORTGAGE, INC.
***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing for Line 11. Counsel and parties are ordered to appear in person or via Zoom for the CMC. If the tentative ruling for Line 11 is uncontested, this CMC is continued to November 17, 2026 at 8:30 a.m. Counsel are ordered to file a further CMC statement.

3. 9:00 AM CASE NUMBER: C25-03661
CASE NAME: KELLEN KIRK VS. TESLA, INC.,
***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing for Line 14. Counsel and parties are ordered to appear in person or via Zoom for the CMC. If the tentative ruling for Line 14 is uncontested, this CMC is continued to November 17, 2026 at 8:30 a.m. Counsel are ordered to file a further CMC statement.

Law & Motion

4. 9:00 AM CASE NUMBER: C23-01776
CASE NAME: MARK FROHNEN VS. ALAMO RIDGE SUBDIVISION 6419 ASSOCIATION
HEARING ON SUMMARY MOTION
FILED BY: ALAMO RIDGE SUBDIVISION 6419 ASSOCIATION

TENTATIVE RULING:

I. Motion and Opposition

Before the Court is Defendant Alamo Ridge Subdivision 6419 Association's ("Defendant," "Cross-Complainant," or "the HOA") motion for summary judgment or, in the alternative, for summary adjudication. The motion is opposed by Plaintiffs Mark and Eileen Frohnen ("Plaintiffs," "Cross-Defendants," "the Frohns"). This motion relates to Plaintiffs' complaint for (1) breach of governing documents; (2) slander of title; (3) negligence; and (4) declaratory relief, and Defendant's cross-complaint for (1) negligence; (2) breach of contract; (3) nuisance; (4) premises liability; (5) equitable indemnity; and (6) declaratory and injunctive relief.

Defendant moves for summary judgment or, in the alternative, summary adjudication, of Plaintiffs' complaint on the grounds that (1) Plaintiffs' causes of action for breach of governing documents and negligence fail as a matter of law because it is undisputed that Defendant did not breach any duties it owed to Plaintiffs under the governing documents or otherwise; (2) the cause of action for slander of title fails as a matter of law because it is undisputed that the lien amount assessed on Plaintiffs' property was without malice or reckless disregard; and (3) the declaratory relief cause of action is derivative of Plaintiffs' other causes of action.

Plaintiffs oppose this motion. They contend that the scope of the HOA's maintenance obligations under the CC&Rs is disputed, that causation cannot be resolved as a matter of law on this record, and that the slander of title and declaratory relief claims present independent triable issues.

In this same motion, Defendant/Cross-Complainant also seeks summary judgement, or in the alternative, summary adjudication, of its own Cross-Complaint. It does so on the grounds that (1) as to the causes of action for negligence and premises liability, it is undisputed that Plaintiffs/Cross-Defendants had a duty to maintain the drainage system and slope on their property and they breached that duty; (2) as to their breach of contract cause of action, it is undisputed that Plaintiffs/Cross-Defendants were bound by the CC&Rs to continuously maintain the slope on their property and indemnify other owners in the subdivision against damage to the roadway caused by their own negligence, and they failed to meet either of these obligations; (3) as to its cause of action for nuisance, Plaintiffs/Cross-Defendants knew or should have known that their property was prone to landslides and failed to render preventative maintenance on it; and (4) as to its causes of action for equitable indemnity and declaratory and injunctive relief, Defendant/Cross-Complainant is entitled to equitable indemnity from Plaintiffs/Cross-Defendants as a matter of law, and a judicial determination is necessary and appropriate so that the parties may ascertain their respective rights and duties towards each other.

Plaintiffs oppose this motion. They contend that causation cannot be established as a matter of law, that the HOA's maintenance obligations under the CC&Rs preclude its breach of contract and nuisance claims, and that the equitable indemnity and declaratory relief claims fail on independent grounds.

For the following reasons, Defendant's motion for summary judgment or, in the alternative summary adjudication, is **DENIED**.

II. Request for Judicial Notice

Defendant, in support of the instant motion, requests judicial notice of the operative Complaint and Cross-Complaint in this action.

A court may take judicial notice of court records pursuant to Evidence Code section 452(d).

Defendant's unopposed request for judicial notice is **GRANTED**.

III. Legal Standard

A party may move for summary judgment if it contends that a cause of action lacks merit. (Code Civ. Proc. § 437c(a)(1).) A cause of action lacks merit if one or more of its elements cannot be established or if the defendant establishes an affirmative defense. (Code Civ. Proc. §437c(o).) To succeed on a motion for summary judgment, a defendant must conclusively negate a necessary element of the plaintiff's case and demonstrate that under no hypothesis embodied in the complaint is there a material issue of fact that requires the process of a trial. (*Molko v. Holy Spirit Assn.* (1988) 46 Cal.3d 1092, 1107; *Kelleher v. Empresa Hondurena de Vapores, S.A.* (1976) 57 Cal.App.3d 52, 58.) "When the defendant moves for summary judgment and makes a *prima facie* showing that one or more

elements of the plaintiffs' cause of action cannot be established, the burden shifts to the plaintiff to make a *prima facie* showing that the element in question can be established." (*Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467.)

Where a party moves for summary judgment or adjudication not to defeat an opponent's claims but to obtain affirmative judgment on its own, a plaintiff (or cross-complainant standing in the plaintiff's position) bears the burden of proving each element of its own cause of action and that there is no defense thereto. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) The moving party must present evidence sufficient to establish every element of the claim such that no reasonable trier of fact could find in the opposing party's favor. (*Ibid.*) "If the plaintiff is unable to meet her burden of proof regarding an essential element of her case, all other facts are rendered immaterial." (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 780, quoting *Leslie G. v. Perry & Associates* (1996) 43 Cal.App.4th 472, 482.) Only if the moving party meets that initial burden does it shift to the opposing party to demonstrate a triable issue of material fact. (Code Civ. Proc § 437c(p)(1).)

There exists a triable issue of material fact if the evidence, viewed in the light most favorable to the opposing party, is such that a reasonable trier of fact could find the underlying fact in favor of the opposing party by the applicable standard of proof. (*Aguilar, supra*, 25 Cal.4th at 850, *Reader's Digest Assn. v. Superior Court* (1984) 37 Cal.3d 244, 252.) "When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment." (*Avivi, supra*, 159 Cal.App.4th at 467.)

IV. Factual and Procedural Background

This case arises out of a dispute between a homeowner's association ("HOA") and homeowner-residents over the assignment of liability for the alleged failure of a storm sewer system in a residential development that resulted in a landslide.

Plaintiffs Mark and Eileen Frohnen live in Alamo, California, at 2205 Las Trampas Road. (Complaint ("Compl.") at 2:9-14.) Their home, which they purchased in 1998, is among 19 residences situated on a hillside in the Alamo Ridge Subdivision 6419 ("Alamo Ridge" or "the Subdivision") and is subject to the authority of the HOA under the Subdivision's governing documents. (*Id.* at 1:21-24, 2:27-3:2, 3:4-5.) These governing documents were most recently restated in 2011 in "the First Restated Declaration of Covenants, Conditions, and Restrictions for Alamo Ridge Subdivision 6419 Association of 2011 (the CC&Rs)" and the By-Laws of the Alamo Ridge Subdivision 6419 Association ("the By-Laws"). (*Id.* at 4:16-24, Exhibits B, C.)

The CC&Rs define the HOA's role as follows:

The Association...shall be charged with the duties and invested with the powers set forth in the Articles, the By-Laws and these CC&Rs.
The primary purpose of the Association is to maintain Las Trampas Road from the security gate to the end of Las Trampas Road, all

easements therefore, the main gate and storm sewers.

(Compl. Exhibit B, CC&Rs § 3.1)

To execute this mandate, the HOA holds right of entry onto owners' lots via easements. (Compl. at 4:1-7; Exhibit B, CC&Rs § 9.14.) The CC&Rs assign responsibility for maintenance of the easements, the storm sewer system situated on them, and the roadway in various ways as follows. Section 9.14 of the CC&Rs provides that these reserved easements are meant for "installation and maintenance of utilities and drainage facilities" but also that "[t]he easement area of such lot and all improvements in it shall be maintained continuously by the Owner of the lot, except for those improvements for which a public authority utility company is responsible." (Compl. Exhibit B, CC&Rs § 9.14.) Meanwhile, the CC&Rs also provide, as quoted above from section 3.1, that maintenance of "all easements therefore, the main gate and storm sewers" is among the HOA's "primary purpose[s]." (Compl. Exhibit B, CC&Rs § 3.1) Additionally, section 11.7(5) provides in relevant part:

The Owners, their heirs, successors and assigns shall properly maintain the Roadways in good condition...The Storm Sewer System shall similarly be maintained in good and operable condition...[T]he Owners may from time to time hire contractors, engineers or other qualified persons or entities to repair and maintain the Roadway and/or Storm Sewer System...Each Owner shall repair and indemnify the other Owners against any liability for damage to the Roadway or Storm Sewer System caused by the intentional or negligent acts of said Owner.

(Compl. Exhibit B, CC&Rs § 11.7(5).)

The Subdivision's storm sewer system collects runoff from the top of the hill on which the Subdivision is situated and ushers it from the end of Las Trampas Road, which is graded to direct the flow, into a catch basin at the lowest point of a cul-de-sac serving the Frohnens and four neighboring properties at 2219 Las Trampas Road. (Compl. at 9:8-13; Thomas Blackburn Declaration ("Blackburn Dec.") at 3:6-9.) From there, a 12-inch pipe carries the stormwater to a junction box located on the 2219 lot, where it is redirected at approximately a 90-degree angle into a second 12-inch pipe aimed directly toward the Frohnens' property. (Blackburn Dec. at 3:10-13.) That pipe continues over the Frohnens' property and discharges into a natural drainage swale improved in portions by rip-rap ("the Improved Swale"), which descends steeply down the hillside. (*Id.* at 3:14-18, Compl. at 9:14-21.) The Improved Swale terminates at a flat area above the landslide zone; the flat area contains no defined channel capable of directing stormwater flows. (Blackburn Dec. at 3:18-20; Douglas N. Akay Declaration ISO Plaintiffs' Opposition to MSJ/MSA ("Akay Dec.") Exhibit C, Exhibit 5 attached to Ralph Briggs Wood Deposition.) From the lower improved swale, runoff discharges into an asphalt swale paralleling the road, drops into a catch basin, and empties into Las Trampas Creek. (*Id.* at 3:26-28.)

Plaintiffs allege that despite the HOA's mandate, it performed only sporadic storm sewer work over the decades, with no meaningful inspection or repair of the hillside run-off components for at least 10

years before the subject landslide. (Compl. 8:21-27.)

Beginning in the fall of 2022, a series of atmospheric river storms saturated the Bay Area, including the hillside at Alamo Ridge. (Compl. at 10:24-27.) On December 31, 2022, which was the third day of at least the sixth such storm to hit the Bay Area in the series, the storm sewer system failed in the lower portion of the ravine on 2219 Las Trampas Road. (*Id.* at 10:28-11:3.) It is the opinion of the Plaintiffs' expert, geotechnical engineer Thomas Blackburn, that because no defined swale existed in the flat area described *ante*, stormwater discharged from the upper Improved Swale slowed, spread across the flat area, saturated it, and triggered a landslide. (Blackburn Dec. at 3:26-28.) The resulting erosion and tree collapse sent topsoil and fallen trees down the hillside and onto lower Las Trampas Road. (Compl. at 11:6-11.) The Frohnens allege the failure resulted from design deficiencies and the HOA's years of neglect of the hillside run-off components. (*Id.* at 11:17-12:4.) The HOA contends that the landslide instead resulted from years of the Frohnens' neglect of the hillside on their property despite inquiry notice of the fact that their hillside was prone to landslides. (Separate Statement of Undisputed Facts ("SSUF") Nos. 18-22.)

Section 5.5(a)(1) of the CC&Rs provides in relevant part that in the event of damage "caused by the willful misconduct or negligent act or omission of any Owner" to any portion of the roadway or storm sewer system that the HOA is obligated to maintain and repair, the HOA will make the repair and a special individual assessment will be charged to that owner. (Compl. Exhibit B, CC&Rs § 5.5(a)(i).) Section 5.5(a) also requires that no special assessment is levied on an owner until he or she is afforded notice and hearing rights. (*Id.* at Exhibit B, CC&Rs § 5.5(a).)

Within weeks of the landslide, without any investigation into causation, the HOA assigned responsibility for the event to the Frohnens on the basis that the debris that came to rest on lower Las Trampas Road originated from the Frohnens' property. (Compl. at 12:6-13; Declaration of Mark Frohnen in opposition to MSJ ("M. Frohnen Dec.") Exhibit B.)

At a January 9, 2023 Architectural and Maintenance Committee meeting the three members of the committee (Ralph Briggs Wood, Howard Guild, and Stephen Hamill) concluded that responsibility for the landslide cleanup fell to the Frohnens based on the origin of the debris and the CC&Rs. (Akay Dec. Exhibit C, Exhibit 4 to the Ralph Briggs Wood Deposition.) Mr. Frohnen and other Subdivision homeowners were present. (*Ibid.*)

The Architectural and Maintenance Committee held another meeting on February 22, 2023, to discuss assignment of responsibility for the costs of the landslide clean up. (Reply Dec. Darren J. Chetcuti ("Chetcuti Reply Dec.") Exhibit L.) Minutes from the meeting indicate that Mr. Frohnen was not present at the February 22 meeting, however they do state that another meeting was held with Mr. Frohnen "to discuss the responsibility of the issue." (*Ibid.*) The minutes state that "Frohnen cited the areas of the Association/Subdivision's governing documents which denied Frohnen's liability," and the HOA's attorney, who had reviewed Frohnen's positions, concluded "that they had no standing" such that the HOA could place a lien on the Frohnens' property to pay for the cleanup. (*Ibid.*)

On or around February 24, 2023, the HOA presented the Frohnens with a bill for the cost of clearing

the road of debris in the amount of \$127,347; the bill lacked itemization. (Compl. at 12:19-21.) The Frohnens refused to pay. (*Id.* at 14:13-17.) The HOA's position was and remains that location, and not cause, is the relevant factor as to assigning responsibility for the landslide and its consequences. (Akay Dec. Exhibit E, Howard Guild Deposition at 138:16-139:5.)

On May 23, 2023, pursuant to sections 6.1 and 6.2 of the CC&Rs, the HOA recorded a lien of \$127,347 against the Frohnens' property. (*Id.* at 14:20-22.)

The Frohnens have historically had a fraught relationship with the HOA and some of their neighbors. (M Frohnen Dec., Exhibit C; Declaration of Darren J. Chetcuti in support of motion for summary judgment ("Chetcuti Dec."), Exhibits A, B, C.) In a 2011 article in the East Bay Times wherein the Frohnens are quoted complaining that the Subdivision's posted speed limit was higher than that authorized by the CC&Rs, secretary of the Architectural and Maintenance Committee Ralph Briggs Wood was quoted as saying of the Frohnens, "[y]ou've got one weirdo (home) up here...It's almost like they want to agitate."

Plaintiffs filed the instant suit on July 20, 2023, asserting causes of action for breach of governing documents, slander of title, negligence, and declaratory relief. Defendant filed its Cross-Complaint on July 18, 2024, asserting causes of action for negligence, breach of contract, nuisance, premises liability, equitable indemnity, and declaratory and injunctive relief. The instant motion was filed December 8, 2025.

V. Analysis

As an initial matter, the Court notes a significant structural irregularity in the instant motion. Defendant Alamo Ridge Subdivision 6419 Association moves for summary judgment, or in the alternative, summary adjudication, simultaneously as a *defendant* seeking to defeat Plaintiffs' complaint and as a *cross-complainant* seeking affirmative judgment on its own Cross-Complaint. These are two distinct procedural postures with different burdens of proof in a single combined motion with a single combined separate statement.

This posture is procedurally problematic for several reasons.

First, Code of Civil Procedure section 437c uses the singular throughout, for example: "[a] party may move for summary judgment in *an action* or proceeding if it is contended that *the action* has no merit or that there is no defense to *the action* or proceeding" and "[a] party may move for summary adjudication as to one or more causes of action within *an action*." (Code Civ. Proc., § 437c(a)(1), (f)(1), (emphasis added).) The word "action" is defined as "an ordinary proceeding in a court of justice by which one party prosecutes another." (Code Civ. Proc., § 22.) A complaint and a cross-complaint, though filed under the same case number, are separate, independent actions. (*Westamerica Bank v. MBG Industries, Inc.* (2007) 158 Cal.App.4th 109, 134.) As such, there are two separate simultaneous actions pending in this case, yet section 437c does not contemplate a single motion attacking both as Defendant has done here.

Second, section 437c(f)(2) provides that a motion for summary adjudication "may be made by itself or

as an alternative to a motion for summary judgment.” This alternative structure operates within a single proceeding. Styling a combined motion as “summary judgment, or in the alternative, summary adjudication” as to two separate pleadings simultaneously stretches that mechanism beyond its intended scope, as it asks the Court to adjudicate not one but two proceedings in a single motion, each requiring its own showing and each permitting its own alternative relief.

Third, each motion for summary judgment or adjudication requires a separate filing fee under Government Code section 70627. A single fee appears to have been paid for what is functionally at least two motions.

Fourth, while the separate statement partially demarcates facts by cause of action, it includes many facts not identified with any specific issue raised by the motion. This leads to confusion about what is material and relevant. Because the burden-shifting framework under section 437c(p) operates at the element level, the Court’s analysis below proceeds accordingly.

The Court declines to deny the motion in its entirety on these grounds alone. Both sides have fully briefed the merits as to all causes of action across both pleadings, and no party has been meaningfully prejudiced in its ability to respond. Accordingly, the Court addresses the Complaint and Cross-Complaint separately below, however counsel for Defendant is nonetheless admonished that the combined motion practice employed here does not comply with Code of Civil Procedure section 437c.

A. Plaintiffs’ Complaint

i. Breach of Governing Documents

To prevail on a breach of contract claim, the plaintiff must prove (1) the existence of a contract, (2) plaintiff’s performance of the contract or excuse for nonperformance, (3) defendant’s breach, and (4) resulting damage to the plaintiff. (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186.) A cause of action for breach of governing documents is a breach of contract claim. (*Harvey v. The Landing Homeowners Assn.* (2008) 162 Cal.App.4th 809, 817.) CC&R’s are interpreted with a view toward enforcing the reasonable and mutual intent of the parties at the time of contracting so far as it is ascertainable and lawful. (*Ibid*; Civ. Code, § 1636.) “The interpretation of a contract is a judicial function.” (*Wolf v. Walt Disney Pictures & Television* (2008) 162 Cal.App.4th 1107, 1125.) Where the language is clear, explicit, and does not involve an absurdity, the language of the CC&R’s governs, and words are interpreted in their ordinary and popular sense unless a contrary intent is shown. (*Harvey, supra*, 162 Cal.App.4th at 817; Civ. Code, § 1638.)

Where, however, the court is “[f]aced with contract language that is reasonably susceptible to more than one meaning, certain general rules of contract interpretation come into play to aid the court in resolving the ambiguity.” (*Southern Pacific Transportation Co. v. Santa Fe Pacific Pipelines, Inc.* (1999) 74 Cal.App.4th 1232, 1240.) When the meaning of contract language is disputed, a court engages in a three-step process. (*Wolf, supra*, 162 Cal.App.4th at 1126.) First, the court provisionally receives proffered extrinsic evidence relevant to prove a meaning to which the contract language is reasonably susceptible. (*Ibid*; *Pacific Gas & E. Co. v. G. W. Thomas Drayage etc. Co.* (1968) 69 Cal.2d 33, 37.) Second, if the court finds the contract language is reasonably susceptible to the interpretation urged

in light of the extrinsic evidence proffered, the evidence is admitted to aid in interpretation. (*Pacific Gas & E. Co.*, *supra*, 69 Cal.2d at 39-40.) Third, where the court finds no conflict in the extrinsic evidence, the court interprets the contract as a matter of law. (*City of Hope National Medical Center v. Genentech, Inc.* (2008) 43 Cal.4th 375, 395.) However, when “ascertaining the intent of the parties at the time the contract was executed depends on the credibility of extrinsic evidence, that credibility determination and the interpretation of the contract are questions of fact that may properly be resolved by the jury.” (*Ibid*; *Morey v. Vannucci* (1998) 64 Cal.App.4th 904, 912-913.) Summary judgment is therefore improper where the contract is susceptible to competing reasonable interpretations supported by conflicting extrinsic evidence.

Extrinsic evidence, including course of performance evidence, is admissible not only to resolve an obvious ambiguity but to expose a latent one. (*Wolf*, *supra*, 162 Cal.App.4th at 1126; *Southern Pacific Transportation Co.*, *supra*, 74 Cal.App.4th at 1241; *Employers Reinsurance Co. v. Superior Court* (2008) 161 Cal.App.4th 906, 920.)

The central questions – what the CC&Rs require of the HOA with respect to the maintenance of the storm sewer system, whether and to what extent individual owners must cooperate in that maintenance, and where the storm sewer system starts and ends – cannot be resolved as a matter of law.

As Plaintiffs note, CC&Rs sections 3.1 and 3.10(a) designate maintenance of the easements and storm sewers as the HOA’s primary purpose, and the By-Laws reinforce this mandate. (Akay Dec. Exhibit A §§ 3.1, 3.10(a), Exhibit B § 1.3.) Meanwhile, CC&Rs sections 11.7(5) and 9.14 seem to impose owner obligations on these same duties. (*Id.* Exhibit A §§ 9.14, 11.7(5).) For example, section 3.1 designates the maintenance of the storm sewer system to the HOA and then section 11.7(5) provides that “[t]he Owners, their heirs, successors and assigns shall properly maintain the Roadways in good condition...The Storm Sewer System shall similarly be maintained in good and operable condition.” (Akay Dec. Exhibit A CC&Rs §§ 3.1, 11.7(5).)

Also of note is the fact that the term “owner” is not clearly defined in the CC&Rs, and it is utilized in what appear to be multiple forms throughout the document. (Response to def’s separate statement of undisputed material facts (“RSSUMF”) No. 4.)

The closest the CC&Rs come is section 4.1’s definition of the qualifications required for “Ownership.” It states that: “Ownership of a lot (defined as a person on title recorded with the Contra Costa County Recorder’s Office) in the Development, or interest therein, shall be the sole qualification for and entitlement to Ownership in the Association.” (Akay Dec. Exhibit A § 4.1.)

This definition does not resolve the tension inherent in, for example, section 11.7(5), which refers to the duty of “[t]he Owners” to properly maintain the roadway and storm sewers, in seeming direct conflict with sections 3.1 and 3.10(a). This tension continues where section 11.7(5) goes on to state that “the Owners may from time to time hire contractors, engineers or other qualified persons or entities to repair and maintain the Roadway and/or Storm Sewer System or to act in furtherance of the maintenance of the Roadway and storm sewer system...” Then section 11.7(5) goes on to add yet

another usage where it states that “[e]ach Owner shall repair and indemnify the other Owners against any liability for damage to the Roadway or Storm Sewer System caused by the intentional or negligent acts of said Owner.”

In the context of the other provisions of the CC&Rs and By-Laws, it is unclear whether these references to “Owners” in the plural in section 11.7(5) refer to the owners collectively as the HOA, the owners individually, or the owners in cooperation *with* the HOA, as Defendant contends. (Memorandum of Points and Authorities in support of Motion for Summary Judgment (“MSJ”) at 7:11-24.)

The above provisions are in genuine tension as applied to the duty to maintain the storm sewer system components crossing private lots, and neither party’s reading is unreasonable on its face. Given the ambiguity of this language, the Court next considers the proffered extrinsic evidence. (*Pacific Gas & E. Co.*, *supra*, 69 Cal.2d at 37.)

Here, the extrinsic evidence does not resolve the ambiguity. Defendant points to a pattern of individual owners paying for roadway damage originating from their lots. (MSJ at 11:4-10; SSUF Nos. 86, 87, 88.) In contrast, Plaintiffs point to the Toma incident, in which the Frohnens’ neighbor at 2219 Las Trampas Road experienced a pipe failure causing soil erosion on the neighbor’s private lot in 2013-2014; in that case the HOA board chair stated that the “HOA would take care of it” and reimbursed that owner for repairs. (Opp. at 12:6-14; Akay Dec. Exhibit C Ralph Briggs Wood Deposition at 70:16-72:17.) Defendant characterizes this reimbursement as limited to a mechanically attached outfall pipe; Plaintiffs read it more broadly. (Reply Brief in Support of Summary Judgment (“Reply”) at 3:10-16; Opp. at 12:5-14.) These competing characterizations raise a credibility dispute for the trier of fact. (*City of Hope National Medical Center*, *supra*, 43 Cal.4th at 395; *Morey*, *supra*, 64 Cal.App.4th at 912-913.)

In reply, Defendant invokes *Dover Village Assn. v. Jennison* (2010) 191 Cal.App.4th 123, 129, for the proposition that a storm sewer system consists of interconnected pipes feeding into a common line, and argues that its maintained infrastructure – gutters, grates, catch basins, drain pipes, and outfall pipes – fits precisely that description. (Reply at 2:21-3:4.) This is in contrast to Plaintiffs’ expert Thomas Blackburn’s definition, which includes open channels and surface flows on private hillsides. (Blackburn Dec. at 2:8-15.) *Dover* does not resolve where the interconnected system ends as applied to the engineered rip-rap improvements and junction box at issue here, that is the disputed factual question itself.

The extent of the HOA and owners’ responsibility for the maintenance of the storm sewer system and the scope of that sewer system is in dispute. Ascertaining the intent of the parties at the time the contract was executed depends on the credibility of competing extrinsic evidence, therefore, that credibility determination and the interpretation of the contract are questions of fact to be resolved by a trier of fact. (*City of Hope National Medical Center*, *supra*, 43 Cal.4th at 395; *Morey*, *supra*, 64 Cal.App.4th at 912-913.)

Accordingly, the motion for summary adjudication of the cause of action for breach of governing

documents is **DENIED**.

i. Slander of Title

To state a claim for slander of title a plaintiff must establish (1) a false statement disparaging title; (2) published to a third party; (3) made with express or implied malice and absence of justification; (4) causing direct pecuniary loss. (*Howard v. Schaniel* (1980) 113 Cal.App.3d 256, 264; *Cyr v. McGovran* (2012) 206 Cal.App.4th 645, 651.) A claim for slander of title requires a showing that the statements “were maliciously made with the intent to defame and thereby disparage the title involved.” (*Howard, supra*, 113 Cal.App.3d at 263.)

Here, Plaintiffs’ cause of action contends the recording of a lien on their property, based on costs that were Defendant’s responsibility, was slander of title. Defendant argues Plaintiffs cannot show malice because the costs were actually incurred and Plaintiffs refused to pay them. This position is based on the defense that the alleged slanderous statement was true and valid, an issue that is in dispute, as described above.

The validity of the underlying assessment is genuinely disputed, and malice presents a triable issue on this record. The malice question turns on whether the HOA had a good faith basis for the lien at the time it was recorded. Defendant contends the lien was recorded in good faith pursuant to CC&Rs section 5.5(a) after proper notice and a February 22, 2023 hearing at which Mr. Frohnen’s contentions were considered and rejected. (Reply at 4:24-25; Chetcuti Reply Dec. Exhibit L.) Plaintiffs argue the assessment was unauthorized because section 5.5(a) conditions a special individual assessment on a finding of willful misconduct, omission, or negligence by an owner, and HOA conducted no causation investigation before assigning liability based solely on the provenance of the debris that came to rest on Las Trampas Road. (Opp. at 12:25-13:9, Akay Dec. Exhibit C, Ralph Briggs Wood Deposition at 90:10-19.)

Defendant deliberately and explicitly conducted no investigation as to the cause of the landslide, despite that Defendant’s own Separate Statement characterizes section 5.5(a) as permitting assessment only against an owner who “causes damage” to the roadway or storm sewer system. (SSUF No. 60 (emphasis added); Akay Dec. Exhibit C, Exhibit 5 to the Ralph Briggs Wood Deposition, M. Frohnen Dec. Exhibit B.) The HOA’s admission that it treated location rather than causation as the operative factor in levying the assessment is in tension with that predicate. (Akay Dec. Exhibit E, Howard Guild Deposition at 138:16-139:5; M. Frohnen Dec. Exhibit B.) Whether proceeding to record a six-figure lien on that basis constitutes reckless disregard for the truth is a question for the trier of fact.

The HOA’s omission theory advanced in reply does not resolve this. Even accepting that section 5.5(a)’s omission prong requires no affirmative negligence finding, whether the HOA had a good faith basis for the lien given its admitted failure to investigate causation remains disputed.

Accordingly, the motion for summary adjudication of the cause of action for slander of title is **DENIED**.

i. Negligence

A plaintiff must make a showing of four elements to support a claim for negligence: (1) the defendant had a legal duty of care to the plaintiff; (2) the defendant breached that duty; (3) the plaintiff suffered an injury because of the defendant's breached duty; and (4) damages. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 141. An HOA has a duty to maintain common areas. (Civ. Code, § 4775.) "Common area" means the entire common interest development except the separate interests therein. (Civ. Code, § 4095.)

Plaintiff asserts that Defendant was negligent because it did not comply with its duties to perform inspections, repairs, and maintenance to the HOA storm sewer system. Defendant argues Plaintiffs cannot show breach, but they do not provide any material facts related to their fulfilling the alleged duty before the landslide.

Defendant cites to separate statement fact No. 65 for the contention that the Architectural and Maintenance Committee "conducts monthly maintenance of Las Trampas Road, including clearing debris from the storm drain near the Subject Property," however fact No. 65 only states that "Carlos Sanchez is hired by the Architectural and Maintenance Committee to provide monthly maintenance of *Las Trampas Road*." (MSJ at 11:28-12:2; SSUF No. 65 (emphasis added).)

In support of the contention that Plaintiffs cannot establish Defendant breached its duty, Defendant also contends that a photograph taken shortly after the landslide shows that the storm sewer system was working and water was flowing freely through it such that "that drain acted as it was intended to that day and had no relation to the landslide." (MSJ at 12:2-8; SSUF No. 76.) This does not suffice to show Plaintiffs are unable to prove negligence and is inadequate to shift the initial burden to plaintiffs.

Whether the HOA owed a duty to maintain the storm sewer system components at issue cannot be resolved as a matter of law for the reasons discussed *ante* in the breach of governing documents section. Because the scope of the HOA's maintenance obligation, and thus its compliance with the obligation, is a triable issue of fact, summary judgment on this cause of action is likewise improper.

Accordingly, the motion for summary adjudication of the cause of action for negligence is **DENIED**.

i. Declaratory Relief

To qualify for declaratory relief a plaintiff must make a showing of two elements: "(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the rights or obligations of a party." (*Brownfield v. Daniel Freeman Marina Hospital* (1989) 208 Cal.App.3d 405, 410.) A claim for declaratory relief fails when it is ""wholly derivative" of other failed claims."" (*Smyth v. Berman* (2019) 31 Cal.App.5th 183, 191-192 quoting *Ball v. FleetBoston Financial Corp.* (2008) 164 Cal.App.4th 794, 800.)

Here, Plaintiffs' declaratory relief claim is derivative of the breach of governing documents and negligence claims. A genuine ongoing controversy exists regarding the respective maintenance obligations of the HOA and the individual owners under the CC&Rs. Specifically, there is a controversy

over whether the HOA's location rather than causation assessment policy is enforceable under the CC&Rs and the Davis-Stirling Act. The Frohnens remain owners in the Subdivision and subject to that policy going forward. Because the underlying CC&Rs interpretation dispute survives summary judgment for the reasons discussed *ante*, the declaratory relief survives with it.

Accordingly, the motion for summary adjudication of the cause of action for declaratory relief is **DENIED**.

B. Defendant's Cross-Complaint

i. Negligence and Premises Liability

Plaintiffs (or cross-complainants, as we have here) must make a showing of four elements to support a claim for negligence: (1) the defendant had a legal duty of care to the plaintiff; (2) the defendant breached that duty; (3) the plaintiff suffered an injury because of the defendant's breached duty; and (4) damages. (*Williams, supra*, 185 Cal.App.3d at 141.) Premises liability is a form of negligence. (*Brooks v. Eugene Burger Management Corp.* (1989) 215 Cal.App.3d 1611, 1619.)

Everyone is responsible, not only for the result of his or her willful acts, but also for an injury occasioned to another by his or her want of ordinary care or skill in the management of his or her property or person, except so far as the latter has, willfully or by want of ordinary care, brought the injury upon himself or herself.

(Civ. Code, § 1714.)

The HOA's Cross-Complaint negligence and premises liability claims depend on establishing as a matter of law that the Frohnens owed a duty to maintain the storm sewer system components at issue. The questions cannot be resolved on this record for the reasons discussed *ante* in the breach of governing documents section. Because the scope of individual owner maintenance obligations under the CC&Rs is a triable issue of fact, summary adjudication on these claims is likewise improper.

Accordingly, the motion for summary adjudication of the causes of action for negligence and premises liability is **DENIED**.

i. Breach of Contract

To prevail on a breach of contract claim, the plaintiff (or cross-complainant) must prove (1) the existence of a contract, (2) plaintiff's performance of the contract or excuse for nonperformance, (3) defendant's breach, and (4) resulting damage to the plaintiff. (*Richman, supra*, 224 Cal.App.4th at 1186.) "The interpretation of a contract is a judicial function." (*Wolf, supra*, 162 Cal.App.4th at 1125.)

The HOA's breach of contract claim depends on the validity of the CC&Rs section 5.5(a) assessment, yet Cross-Complainant's motion does not identify with specificity the CC&Rs provisions the Frohnens allegedly breached, instead directing the Court to blocks of separate statement of undisputed material fact numbers from which the breach theory must be reconstructed.

On the merits, section 5.5(a) conditions a special individual assessment on damages caused by an

owner's willful misconduct, negligent act, or omission. (Compl. Exhibit B, CC&Rs § 5.5(a)(i).) As discussed *ante* in the slander of title section, the HOA's own separate statement characterizes section 5.5(a) as requiring a causal connection between the owner's conduct (or omission) and the damage, yet the HOA admittedly made no causation determination before levying the assessment. (SSUF No. 60; Akay Dec. Exhibit C, Exhibit 5 to the Ralph Briggs Wood Deposition; Akay Dec. Exhibit E, Howard Guild Deposition at 138:16-139:5; M. Frohnen Dec. Exhibit B.) Whether the assessment was contractually authorized under those circumstances is a triable issue of fact. Whether the Frohnens' maintenance history constituted a breach of their CC&Rs obligations, or whether the HOA's own failure to maintain the storm sewer system was a prior material breach excusing any alleged nonperformance, presents further triable issues that cannot be resolved on this record.

Accordingly, the motion for summary adjudication of the cause of action for breach of contract is **DENIED**.

i. Nuisance

A private nuisance claim requires conduct by the defendant that directly and unreasonably interferes with the plaintiff's use and enjoyment of land or creates a condition that does so. (*Lussier v. San Lorenzo Valley Water Dist.* (1988) 206 Cal.App.3d 92, 100.) "[W]here injury is allegedly caused by a natural condition, the imposition of liability on a nuisance theory, as a practical matter, requires a finding that there was negligence in dealing with it." (*Id.* at 102.)

Here, whether the Frohnens were negligent in managing their property – the predicate for nuisance liability based on a natural condition – is a triable issue of fact for the reasons discussed *ante* in the Cross-Complaint negligence section. Even assuming *arguendo* that the landslide was not purely a natural condition, whether the Frohnens' conduct or omissions were a substantial factor in causing the resulting interference with the roadway is equally a triable issue of fact for the same reasons.

The Court further notes that Defendant's own moving papers disclaim ownership of Las Trampas Road, presenting an additional potential standing issue the Court need not resolve given the triable issues identified above. (SSUF No.2; MSJ at 2:5-7.)

Accordingly, the motion for summary adjudication of the cause of action for nuisance is **DENIED**.

i. Equitable Indemnity

To state a claim for equitable indemnity, a plaintiff must demonstrate "(1) a showing of fault on the part of the indemnitor and (2) resulting damages to the indemnitee for which the indemnitor is contractually or equitably responsible." (*Expressions at Rancho Niguel Assn. v. Ahmanson Developments, Inc.* (2001) 86 Cal.App.4th 1135, 1139.) "It is well established that the right to indemnity flows from payment of a joint legal obligation on another's behalf." (*Union Pac. Corp. v. Wengert* (2000) 79 Cal.App.4th 1444, 1448.)

Here, the HOA's equitable indemnity claim has an independent threshold problem: the right to equitable indemnity flows from payment of a joint legal obligation on another's behalf. (*Union Pac. Corp., supra*, 79 Cal.App.4th at 1448.) The HOA did not pay a joint obligation, it performed repairs to a

roadway it is contractually obligated to maintain under CC&Rs sections 3.1 and 3.10(a).

In reply, Defendant grounds its indemnity claim in CC&Rs section 11.7(5), which it contends requires each owner to repair and indemnify the other owners for damage caused by that owner's intentional or negligent acts. (Reply at 9:26-28.) However, as noted *ante*, in the breach of governing documents section, CC&Rs section 11.7(5) uses the term "Owners" in more than one sense within this same provision and it is not clear, in the context of the other provisions of the CC&Rs and By-Laws, whether the indemnity obligation runs from the individual owner to the HOA, among individual owners collectively as the HOA, or both. That ambiguity is itself a triable issue of fact going to the scope of the alleged contractual obligation. Whether the cleanup costs were the HOA's own primary obligation rather than a joint obligation shared with the Frohnens presents a further triable issue for the reasons discussed *ante*. Fault on the part of the Frohnens has not been established as a matter of law for the reasons discussed in the Cross-Complaint negligence section.

Accordingly, the motion for summary adjudication of the cause of action for equitable indemnity is **DENIED**.

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Declaratory and Injunctive Relief

To qualify for declaratory relief a plaintiff must make a showing of two elements: "(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the rights or obligations of a party." (*Brownfield, supra*, 208 Cal.App.3d at 410.) A claim for declaratory relief fails when it is ""wholly derivative" of other failed claims."" (*Smyth, supra*, 31 Cal.App.5th at 191-192 quoting *Ball, supra*, 164 Cal.App.4th at 800.)

The HOA's declaratory and injunctive relief claims are derivative of its negligence, breach of contract, and nuisance claims. Because summary adjudication of those claims is improper for the reasons discussed above, summary adjudication is likewise improper for the HOA's declaratory and injunctive relief claims.

Accordingly, the motion for summary adjudication of the causes of action for declaratory and injunctive relief is **DENIED**.

VI. Evidentiary Matters

"In granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of the motion." (Code Civ. Proc., § 437c.)

Both parties have reproduced full evidentiary objections within their separate statement responses. California Rule of the Court 3.1354(b) explicitly requires that objections to evidence supporting or opposing a motion for summary judgment must be made in a separate document distinct from the separate statement, and prescribes a specific format for doing so: "[o]bjections to specific evidence must be referenced by the objection number in the right column of a separate statement in opposition or reply to a motion, but *the objections must not be restated or reargued in the separate statement*." (Cal. Rules of Court, rule 3.1354(b).) Embedding full objections within the separate

statement does not comply with that requirement. To the extent the embedded objections overlap with objections properly filed as separate documents and are material to the disposition of the motion, they are addressed below. To the extent they do not overlap and/or are not material, the Court declines to rule on them.

Defendant's Objection No.3 to the Blackburn Declaration: **OVERRULED**. The challenged testimony describes the physical components of the storm sewer system based on the declarant's personal inspection of the site. This is properly within the expertise of a licensed geotechnical engineer and does not constitute improper contract construction. (Evid. Code, § 720.)

Defendant's Objection No. 4 to the Blackburn Declaration: **OVERRULED**. The Court does not rely on the speculative portion of the challenged testimony regarding the Central Contra Costa Sanitary District. The remainder of the paragraph – that the absence of a defined channel in the flat area caused stormwater to spread, saturate the slope, and trigger the landslide – is a geotechnical causation opinion within the declarant's expertise and is not speculative. (Evid. Code, §§ 720, 803.)

All remaining objections are not material to the Court's disposition and are not ruled upon.

VII. Conclusion

For the foregoing reasons, Defendant's motion for summary judgment or, in the alternative summary adjudication, is **DENIED**.

5. 9:00 AM CASE NUMBER: C23-02578
CASE NAME: DAVID HAMMOND VS. DOES 1 THROUGH 100, INCLUSIVE
HEARING ON SUMMARY MOTION
FILED BY: HAMMOND, DAVID
TENTATIVE RULING:

On the Court's own motion, the hearing is continued to 9:00 a.m. on June 10, 2026. No further briefing will be required. No appearance is required on May 20, 2026.

6. 9:00 AM CASE NUMBER: C23-03200
CASE NAME: BRANDI SANFORD VS. PACIFIC STATES PETROLEUM, INC.
*HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS ACTION
FILED BY: SANFORD, BRANDI
TENTATIVE RULING:

Summary

Plaintiff Brandi Sanford moves for preliminary approval of the proposed class action settlement with defendant ARB, Inc. The motion is **granted** as set forth below. No appearance is required at the hearing on May 20, 2026.

Background and Settlement Terms

The original complaint was filed on December 18, 2023, raising class action claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code by failing to pay minimum wages, failure to provide meal periods, failure to authorize rest periods, among others. On December 21,